

Class Action Monitoring Memo — Sector Privacy Litigation

Class-Action Monitoring — Sector Settlement Analogues

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Memorandum. To: Office of the General Counsel. From: Hannah Brooks, Deputy General Counsel. Re: Sector privacy and data-breach class-action monitoring — settlement analogues. Date: 18 December 2025.

1. Purpose and scope

This memorandum surveys recent privacy and data-breach class-action activity in the consumer-internet sector and summarises publicly reported settlement analogues. Its purpose is to assist the Company in *understanding the range of outcomes* seen in comparable matters. It does **not** assert that the Company has been, or will be, the subject of any such claim; no consumer class action has been filed against the Company (see the litigation schedule, DR-078).

2. Sector trends

- Plaintiff firms have become more active in filing consumer-privacy and data-breach class actions promptly following public reports of large-scale credential resets or account-access events.
- Theories of harm increasingly rely on statutory damages and risk-of-harm frameworks rather than proof of out-of-pocket loss.
- Multidistrict consolidation is common where multiple firms file in parallel.
- Settlements frequently bundle cash funds with credit-monitoring and injunctive security-enhancement commitments.

3. Settlement analogues (illustrative, anonymised)

The following anonymised analogues are drawn from publicly reported consumer data-event settlements. Per-record and per-capita figures vary widely with the data types involved, the number of affected individuals and the litigation forum.

Analogue	Affected (approx.)	Reported settlement	Implied per-record
Sector comparator A (credential/profile data)	~150m	\$85m–\$120m	~\$0.6–\$0.8 / record
Sector comparator B (email/identity data)	~80m	\$50m–\$90m	~\$0.6–\$1.1 / record
Sector comparator C (large legacy dataset)	~500m+	\$100m–\$175m	~\$0.2–\$0.4 / record
Sector comparator D (regulated-data overlay)	~30m	\$40m–\$70m	~\$1.3–\$2.3 / record
Sector comparator E (settled per-capita basis)	~200m	\$60m–\$110m	~\$0.3–\$0.6 / record

4. How to read these ranges

Per-record settlement values tend to *fall* as the affected population rises, while aggregate funds tend to rise. A hypothetical matter touching a population in the low hundreds of millions would, on these analogues, plausibly imply an aggregate settlement reserve in the tens to low hundreds of millions of dollars, before credit-monitoring

and injunctive components and before any regulatory exposure (which is separate). These are **comparators only**.

5. Monitoring posture

- Continue docket and plaintiff-firm monitoring on a standing basis.
- Preserve relevant materials under existing legal holds.
- Coordinate any litigation-reserve view with Finance and with outside counsel's separate exposure analysis.

Comparators are illustrative and anonymised; they are not predictions. Litigation-reserve decisions are made separately. Privileged and confidential.